

What is justice?

This question breaks down into a number of sub-questions. We can ask what it means for a **person** to be just. We can also ask what it means for an **international system** of distinct societies to be just.

Today we are going to focus on the question of what it means for an individual society — which for our purposes we can take to be a nation — to be just.

This question is sometimes called the question of **distributive justice**, because it asks about the just distribution of goods within a society at a time.

What goods are we talking about?

One category is what we might call **material goods**. These include things like food and property and income.

But these are not the only goods. Other goods include **political rights** (such as the right to vote) and **liberties** (such as the freedom to choose where one lives or whom one marries or what job one pursues). As we will see, there are others.

This is enough to describe a society which most of us would agree
to be unjust.

At some initial time t , the members of a society are living in a state of relative equality. But at a later time $t+1$, some sub-group A takes all of the property of sub-group B. Group A consolidates its power, and enslaves the members of group B, depriving them by force of their political rights and liberties (such as freedom of association and the freedom to pursue an education). By time $t+2$, group A owns all of the property, and gives members of group B only the minimum needed for survival. Members of group B are only permitted to serve group A in the ways that members of group A direct.

It is universal that, at $t+2$, this is an unjust society.

The interesting question is: why is this? What would have to be different for this to be a just society? Different theories of justice provide different answers to this question.

Our first theory of justice provides a very straightforward answer to this question. On this view, what is unjust about our imagined society is its **inequality**. On this view, a just society is one in which goods are distributed equally. This view is called **egalitarianism**.

What would it mean for goods to be distributed equally? A simple answer would be that everyone gets exactly the same goods. Everyone gets just the same food, just the same kind of residence, etc.

But if you think about it, this wouldn't be an ideal set-up. Suppose that I love broccoli and hate spinach, and you are the reverse. Wouldn't it be better for me to get more broccoli and less spinach, and for you to get more spinach and less broccoli? And yet this would seem to be unjust on our simple egalitarian view.

The natural response to this on behalf of the egalitarian is to say that an equal distribution of goods need not mean that we each get exactly the same goods. Instead, perhaps we each should get exactly the same opportunity to buy goods. In a society like ours, this would mean that we would each get the same amount of **money** and the same **income**. I could then use this money on broccoli, and you could use it on spinach. The fact that we made different choices would not make the distribution of goods unequal.

A second problem for the egalitarian is the problem of how to handle inequalities that emerge over time.

Even if we specify that you and I get the same income at every period in our lives, we might still end up with very unequal distributions of goods. I might be very wasteful with my resources whereas you might be very clever with yours, so that after 20 years you have accumulated a large amount of resources. Or maybe my house was destroyed by a tornado, and yours was not.

It looks like, at the end of this 20 year period, we might have a very unequal distribution of resources. This leads to a dilemma for the egalitarian. Should we simply permit this kind of inequality, or should there be an occasional redistribution of resources to restore equality?

One answer to this question is provided by the American philosopher John Rawls, who presented a framework for thinking about distributive justice. That framework begins with a kind of thought experiment.

Imagine that you were behind what Rawls called the **veil of ignorance**.

You are imagining a number of possible societies, where goods are distributed in a variety of ways. But you do not know which person in those societies you will be. You do not know whether your parents will be rich or poor. You do not know whether you will be born with a disease or not. You do not know whether you will be intelligent and good at various jobs, or not. You do not know whether you will be a man or a woman; you don't know whether you will be a member of a racial or religious minority or not. Rawls called this the **original position**.

Rawls then asked: if you were in this original position, what kind of society would you choose to be placed into (not knowing which person in that society you would be)?

We seem to be at an impasse. The egalitarian starts with the plausible idea that a just society would be one with an equal distribution of goods. But when we look at how this might work, we find that it seems to rule out as unjust certain activities (like using one's resources wisely to save up goods for oneself and one's children) which do not seem to be unjust.

We then turned to utilitarianism, which ignores considerations of equality and instead just focuses on the total happiness in a society. But then we saw a plausible argument that utilitarianism goes wrong in ignoring the way in which happiness is distributed — which seems to push us back in the direction of egalitarianism.

It is tempting to say that we need ‘something in the middle.’ Maybe so.

But even if so, what principled reason could we have for deciding where?

Our answer to this question, Rawls thought, will tell us what the just society would be. The just society is the one that we would choose if we did not know where in this society we would be.

This approach to thinking about justice is called **contractualism**. The idea is that the fairest society is the one we would choose if we eliminated knowledge of our position, thereby eliminating our self-interest in choosing a society which benefits our group over another group.

Contractualism is not itself a theory of justice — it is a way of arriving at a theory of justice. What society did Rawls think we would pick, if we were in the original position?

Rawls' answer to this question has two main parts. First, Rawls thought, we would pick a society in which everyone was guaranteed certain basic rights and liberties. These would include freedom of thought, freedom of speech, freedom of association, the right to vote, and the the right to hold political office. No one would choose to live in a society in which they were denied these freedoms; and if you are in the original position (and hence don't know where in the society you will end up) you will therefore choose a society in which everyone has these rights. This is

Rawls' first principle of justice.

What would we choose about the distribution of goods? Would we, as the egalitarian thinks, choose a society in which these were all distributed equally?

Rawls thought not. After all, it is plausible that some societies which permit some inequality will be such that even their worst off members are better off than people in a society in which goods are distributed equally.

Remember our example, in the discussion of egalitarianism, of someone who through hard work invents something which is to the benefit of all. If there are incentives to do this sort of thing, that would benefit, not just the person who did the inventing, but also everyone else.

So now imagine two societies. In society A, everyone is equally well off. In society B, there is some inequality, but even the people with the least goods in society B are better off than everyone in society A. If you were in the original position, which kind of society would you choose?

This, Rawls thought, rules out egalitarianism. But this does not answer the question of when and for what reasons inequality should be allowed to exist. To answer this question, we again return to the original position.

Rawls had two main thoughts about inequality. The first is that, if there is to be inequality, all must be given an equal chance to be one of the people who is better off.

Imagine, for example, a society in which only men get to be better off. Rawls thought that in the original position you would not choose such a society, since you would not know whether you will be a man or a woman, and hence won't know whether you will be in the group that gets the chance to improve its lot in life.

So, Rawls thought, we would choose a society in which inequality results from doing things which everyone has the opportunity to do. So we would choose a society where everyone has a kind of **equality of opportunity**.

How much inequality could exist in the society we would choose in the original position?

Even if you know that you will have equal opportunity in this society, you don't know in the original position whether you will be one of the people who has the talents to take advantage of this opportunity. So, Rawls thought, you would be especially concerned that the people who are worst off in this society have as many goods as possible.

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So, Rawls thought, you would choose a society in which inequalities must be to the greatest benefit to the people in the society who are worst off.

Rawls called his theory justice as fairness. It can be stated in outline form like this:

Justice as Fairness

- (1) Every person has basic rights and liberties.
- (2) Any inequalities must (a) come from positions to which everyone has equal opportunity and (b) be to the greatest benefit to the worst off members of society.

More controversially, Justice as Fairness would seem to license reasonably strong principles governing the redistribution of wealth.

For example, suppose that you start a company which brings benefit to many, including good paying jobs which make many people better off. Suppose that the company makes you \$1 million. Is your possession of this money of the greatest benefit to the worst off members of society?

These are interesting consequences of Justice as Fairness, but need not be seen as objections to it. Let's turn now to an important objection to Rawls' theory, which will help introduce our fourth and last theory of justice.

In fact, this argument can be seen as an objection to all three of the theories we have discussed so far. The argument, which has come to be called the Wilt Chamberlain argument, is due to Robert Nozick.

Suppose that at some time t_1 the distribution of goods in a society is just (according to whichever theory of justice you favor). Now suppose that, at t_1 , 1 million people decide that they are willing to pay 25¢ to see Wilt Chamberlain play basketball.

By time t_2 , they have all paid Wilt this amount, so that he now has an extra \$250,000. According to any of the theories we have discussed, the distribution of wealth at t_2 is now unjust. So it must (to maintain justice) be redistributed.

But, Nozick thinks, it is hard to see why the situation at t_2 should be unjust.

After all, we stipulated that at t_1 the situation was just. That means that, at t_1 , all of the people were entitled to the money that they have.

But, if they are entitled to the money that they have, they are surely entitled to use it as they like. They decided to give the money to Wilt Chamberlain. Where is the injustice in that?

If it is unjust for them to decide to give the money to Wilt Chamberlain,
then the money must not have been theirs to decide what to do with in
the first place. But they were! After all, we stipulated that the situation
at t_1 was just.

Nozick thinks that this shows that the theories we have discussed contain a kind of internal contradiction. On the one hand, they want to say that the situation at t_1 was just, so that people are entitled to their money at that time. On the other hand, they must say that injustice entered the picture between t_1 and t_2 , which implies that people were not entitled to their money at t_1 after all.

All of the theories we have discussed are what are called **patterned** theories of justice. They try to explain what justice is by (at least in part) describing the just pattern by which goods should be distributed.

The problem is that, no matter what pattern one describes, it looks like we can come up with an example like the above in which an apparently just transaction will move society from a situation which fits the pattern to one which does not.

But it might be hard to see how we could construct a theory of distributive justice
which was not a patterned theory. What would that look like?

As an alternative to the kinds of theories we have discussed so far, Nozick developed a libertarian theory of justice.

On this kind of theory, we don't check whether a society is just by seeing whether it fits a particular pattern of distribution. Instead, we look at its history. A society is just if the distribution of goods in that society was derived from a series of just acquisitions of goods. Of course, the libertarian must explain what a just acquisition is.

Nozick recognized two kinds of just acquisitions. The first is an acquisition of a good from someone else who previously owned it. This kind of transfer of a good is just in case (roughly) the transfer doesn't involve any fraudulent misrepresentation of the good, and is done according to the terms of exchange agreed to by both parties.

But of course that can't be all that there is to the theory. Many goods which we own were, at some time, not owned. For example, I own a house on some land which was, at one time, unowned. How does one justly acquire a good which was not previously owned?

Nozick adapts an idea which goes back to the 17th century English philosopher
John Locke.

The idea is that we are all the owners of our selves and our talents, and hence the owners of our own labor. Sometimes, by using our labor, we can improve the value of some aspect of the (previously unowned) material world. If, in doing so, we improve the value of that thing, we have “mixed our labor with it” and for that reason it becomes ours. Let’s call this an **appropriation**: it is a transfer of a good from unowned to owned.

Then give the following theory of distributive justice:

When is an
appropriation
just?

Libertarianism as stated would seem to leave open the following possibility: someone builds a small raft and sets it afloat in an unowned portion of the Pacific Ocean. They thereby use their labor to improve (slightly) the value of the ocean, and claim ownership of all unowned portions of the Pacific Ocean for themselves.

Or someone might install a powerful air purifier Notre Dame's campus, and declare ownership of all air circulating on campus. Could they justifiably require a fee from anyone breathing the air?

Examples like these suggest that there must be **some** constraints on appropriations of previously unowned things. But what should these constraints be? This question has proved difficult to answer.

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